

1 **SENATE FLOOR VERSION**

2 February 25, 2025

3 **AS AMENDED**

4
5
6 SENATE BILL NO. 744

By: Gillespie

7 **[labor - prohibited acts against employees -**
8 **effective date -**

9 **emergency]**

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 1. AMENDATORY 40 O.S. 2021, Section 199, is
12 amended to read as follows:

13 Section 199. A. It shall be a misdemeanor for any employer, as
14 defined in Section 165.1 of this title, or his or her agent to
15 discharge, penalize, or in any other manner discriminate against any
16 employee because:

17 1. The employee has filed a complaint with his or her employer,
18 or the Commissioner of Labor or his or her authorized
19 representative, to enforce any provision of Sections 71 through
20 198.2 of this title;

21 2. The employee has caused to be instituted a proceeding or
22 investigation related to an alleged violation of any provision of
23 Sections 71 through 198.2 of this title; ~~or~~

1 3. The employee has testified or is about to testify in an
2 investigation or proceeding under this title;

3 4. The employee has exercised his or her right to vote as
4 protected in Section 4 of Article II of the Oklahoma Constitution in
5 the course of his or her duties as an elected official; or

6 5. The employee has exercised his or her right of free speech
7 as protected in Section 22 of Article II of the Oklahoma
8 Constitution in the course of his or her duties as an elected
9 official.

10 B. Every employer, as defined in Section 165.1 of this title,
11 or his or her agent shall be guilty of a misdemeanor if:

12 1. The filing of a complaint with the employer, Commissioner of
13 Labor or his or her authorized representative, or the taking of any
14 action directly related to the complaint by any employee is a
15 substantial and material factor in the discharge, penalization of or
16 any other discrimination against the employee by the employer or his
17 or her agent; or

18 2. The employer or his or her agent has acted in a manner which
19 has the effect of discouraging, restraining, coercing, or
20 interfering with any employee in the exercise of the employee's
21 rights contained in Sections 71 through 198.2 of this title.

22 C. Every person convicted of violating a prohibition of this
23 section shall be fined not less than Fifty Dollars (\$50.00) nor more
24 than Two Hundred Dollars (\$200.00) or imprisoned in the county jail

1 for not less than five (5) days nor more than thirty (30) days, or
2 both.

3 SECTION 2. This act shall become effective July 1, 2025.

4 SECTION 3. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8 COMMITTEE REPORT BY: COMMITTEE ON ECONOMIC DEVELOPMENT, WORKFORCE
AND TOURISM

9 February 25, 2025 - DO PASS AS AMENDED

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